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Cops Play Hide and Seek About Using Spy Tech to Avoid Scrutiny and Bad PR

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Law enforcement agencies across the country are increasingly relying on spying technologies—[automated license plate readers](#) (ALPR), [cell-site simulators](#), and [facial recognition](#), to name a few—causing an outcry in many communities where people are rightly concerned about the threat to civil rights and civil liberties these tools present.

Some authorities are responding to these concerns by trying to hide what they're doing. Police departments are telling officers not to mention ALPRs when stopping vehicles and concealing their use of ALPRs to avoid citizens'

public records requests. Concealing the use of unpopular spying tools isn't anything particularly new for law enforcement—cops have been doing it for years—but it's just as wrong now as it was 20 years ago.

These practices prevent the public from knowing about and questioning how agencies are spending taxpayer dollars on spying technologies and holding them accountable. This is especially troubling when many towns are signing contracts with Flock and other ALPR vendors with little to no public oversight. The practice also violates disclosure obligations, allows cops and prosecutors to hide their tactics from judges, and cheats defendants from being able to challenge the use of evidence gathered by spy tech from being used against them.

404 Media recently [revealed](#) that in its usage policy for Flock ALPR cameras, one county in Iowa tells police to keep them a secret when detaining people: “DO NOT MENTION ALPR USAGE TO THE OCCUPANTS OF THE VEHICLE,” the policy document reads. “DO NOT MENTION ALPR USAGE IN YOUR REPORT OR COMPLAINT UNLESS ABSOLUTELY NECESSARY.” If writing a report about an incident, police are told to say they used “county resources” in making a stop instead of acknowledging use of ALPRs.

In Houston, police officers are likewise instructed to [“be as vague as permissible”](#) about why they are using Flock because the searches they run on Flock's surveillance system could be obtained via public records requests.

There is growing public alarm about the threat to civil liberties posed by ALPR cameras and reports of police abusing the tech by [using it to spy on their exes](#). Some cities have the cameras [covered up](#), and others are [cancelling](#) their use of ALPR networks. Two states have recently [stepped back](#) from ALPRs. This trend is certainly not lost on law enforcement agencies. Hiding the fact that they're using ALPRs from Flock and other vendors is one way of avoiding scrutiny and bad PR.

But law enforcement and their spy tech vendors keeping people in the dark about the surveillance technologies trained on them predates the Flock backlash by decades. For example, AT&T built a powerful phone surveillance tool for police, called Hemisphere, in the mid 2000s, and [the company required agencies](#) not to use evidence gathered by Hemisphere in court unless there was no other admissible evidence. If evidence obtained through Hemisphere was used, police were required to recreate it through a traditional subpoena, a process they called [“parallel construction.”](#) We called it “evidence laundering.”

Likewise, police and prosecutors have taken far-reaching steps to hide from the

public and courts their use of cell site simulators, also known as stingrays. Police have used these devices, which trick cell phones into connecting to them instead of phone towers to try locating suspects, to obtain people's location data without a warrant by [deceptively obtaining](#) basic pen register orders from courts. Pen register orders are for obtaining call log data and police don't need to prove they have probable cause to get one.

In Baltimore, for example, a judge concluded that law enforcement had used a standard pen register order [to intentionally hide its use of a Stingray](#) from the court in violation of its legal disclosure obligations, leading to a landmark 2015 privacy ruling that cops need a warrant to use the device.

That didn't stop police from continuing to try to pull the wool over the eyes of courts and defense attorneys when they used stingrays, however. Prosecutors have [accepted plea deals](#) to hide their use of cell-site simulators and have even [dropped cases](#) rather than reveal information about their use of the technology. U.S. Marshalls have [driven files hundreds of miles](#) to thwart public records requests.

Fortunately, our commitment to shining a light on the use of surveillance tech is just as strong, if not stronger, than law enforcement's quest to hide it. We're working with privacy advocates and community groups to bring awareness about existing and emerging spy tools that threaten civil liberties and we're encouraging policymakers and lawmakers to do more to restrain warrantless mass surveillance and stop it before it ever takes hold.

If you're curious about whether your local police have contracts for ALPRS or other surveillance technologies, you can search EFF's [Atlas of Surveillance](#).

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